SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DR. PETER DASZAK, PH.D.,

Plaintiff,

-against-

ECOHEALTH ALLIANCE INC., STEVEN SHAPIRO, INDIVIDUALLY AND AS CHAIRMAN OF THE BOARD OF DIRECTORS OF ECOHEALTH ALLIANCE, INC., AND JULIET AGRANOFF, DR. FREDERICK BAUM III, JOE CURRY, KAREN DENTON, RALPH E. GOMORY, NANCYE GREEN, NANCY GRIFFIN, ROBERT HOGUET, CHARLES HIRSCHLER, GEOFFREY POTTER, ELLEN SHEDLARZ, LISA SILVERSHEIN, JARRET STEPHENS, PAMELA M. THYE, CARLOTA VOLLHARDT, STEVEN WILS, AND DR. LILIAN WU,

Defendants.

Index No.: 164611/2025

ATTORNEY JOSEPH ANCI'S AFFIRMATION IN SUPPORT OF DEFENDANTS' MOTION TO DISMISS

JOSEPH ANCI, ESQ., attorney for Defendants, declares, under penalty of perjury, that the following is true and correct to the best of my knowledge:

1. I am a Principal with the law firm Jackson Lewis P.C., attorneys for Defendants EcoHealth Alliance Inc. ("EHA"), Stephen Shaprio[1], Juliet Agranoff, Dr. Frederick Baum III, Joe Curry, Karen Denton, Ralph E. Gomory, Nancye Green, Nancy Griffin, Robert Hoguet, Charles Hirschler, Geoffrey Potter, Ellen Shedlarz, Lisa Silvershein, Jarret Stephens, Pamela M. Thye, Carlota Vollhardt, Steven Wils, and Dr. Lillian Wu (collectively "Defendants"). As such, I am fully familiar with the facts and circumstances set forth herein.

2. I submit this Affirmation in support of Defendants' Motion to Dismiss

[1] The Complaint incorrectly names Defendant Shapiro as "Steven Shapiro."

Plaintiff's Verified Complaint ("Complaint") pursuant to Rules 3211(a)(7) and 3211(a)(11) of the New York Civil Practice Law and Rules ("CPLR") and the New York Not-For-Profit Corporation Law § 720-a ("NY N-PCL"), seeking dismissal of the Complaint filed by Dr. Peter Daszak ("Plaintiff") in its entirety and with prejudice (Defendants' "Motion").

3. The exhibits attached hereto include documents incorporated by reference into Plaintiff's Complaint and attending Exhibits 1-3. See NYSCEF Doc. Nos.1-5. See also Defendants' Memorandum of Law in Support of Defendants' Motion, pp.4-7.

4. Specifically, Plaintiff references Congressional hearings and the debarment of both Plaintiff and EHA numerous times in his Complaint. (Cp. ¶¶ 1, 28, 37, 40-42, and 46).

5. The Court may therefore properly consider the Congressional records and determinations given their public nature and Plaintiff's references in the Complaint.

6. On May 1, 2024, the House of Representatives' Committee on Oversight and Accountability, Select Subcommittee on the Coronavirus Pandemic (hereafter referred to as "the Government") issued a public transcript regarding a hearing with Plaintiff, titled, "A Hearing With the President of EcoHealth Alliance Dr. Peter Daszak," located at: https://www.congress.gov/118/chrg/CHRG-118hhrg55548/CHRG-118hhrg55548.pdf.

7. A true and correct copy of the Government's public May 1, 2024 transcript titled, "A Hearing With the President of EcoHealth Alliance Dr. Peter Daszak" is annexed hereto as Exhibit "A."

8. On May 1, 2024, the Government also issued a report titled "An Evaluation of the Evidence Surrounding EcoHealth Alliance, Inc.'s Research Activities" detailing its five (5) factual findings regarding its investigation, located at: https://oversight.house.gov/wp-content/uploads/2024/04/2024.05.01-SSCP-Report_FINAL.pdf.

9. A true and correct copy of the Government's public May 1, 2024 report titled "An Evaluation of the Evidence Surrounding EcoHealth Alliance, Inc.'s Research Activities" is annexed hereto as Exhibit "B."

10. On May 15, 2024, the Government issued Plaintiff a public Notice of Suspension and Proposed Debarment Notice, located at: https://oversight.house.gov/wp-content/uploads/2024/05/Tab-1-EHA-SUSP4D-Notice_5.15.2024_signed.pdf.

11. On May 15, 2024, the Government also issued a public Action Referral Memorandum ("ARM") in support of Plaintiff's suspension and proposed debarment, located at: https://oversight.house.gov/wp-content/uploads/2024/05/Tab-2-EHA-SUSP4D-ARM_05.15.2024_signed.pdf.

12. True and correct copies of the Government's public May 15, 2024 Notice of Suspension and Proposed Debarment Notice and ARM to Plaintiff are annexed hereto as Exhibit "C."

13. Plaintiff's Complaint references EHA's employee handbook policies as related to his breach of contract claim in paragraphs ¶¶75-6. See NYSCEF Doc. No.1.

14. Plaintiff's Complaint further admits that Plaintiff himself created the employee handbook. (Cp. ¶75).

15. A true and correct copy of the relevant portion of EHA's employee handbook is annexed hereto as Exhibit "D."

Conclusion

16. For the reasons set forth in Defendants' accompanying Memorandum of Law in Support of its Motion to Dismiss, Defendants respectfully submit that their Motion to dismiss should be granted dismissing Plaintiff's Complaint in its entirety and with prejudice, and

the Court should enter an order granting Defendants such other and further relief as the Court deems just and proper.

Dated: April 2, 2026
New York, New York

Respectfully submitted,
JACKSON LEWIS P.C.

By: */s/ Joseph Anci*
Joseph Anci
Corrine Shea
Attorneys for Defendants

SUPREME COURT OF THE STATE OF NEW YORK
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-against-

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Defendants.

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CERTIFICATE OF COMPLIANCE

JOSEPH ANCI, ESQ., an attorney in good standing, admitted to practice before the courts of the State of New York, affirms under penalty of perjury that:

1. I am a Principal with Jackson Lewis, P.C., attorneys for Defendants in the above-captioned action.

2. I hereby certify that the Attorney Affirmation in Support of Defendants' Motion to Dismiss contains 598 words and complies with the word count limit set forth in Section 202.8-b of the Uniform Civil Rules for the Supreme Court and the County Court.

Dated: April 2, 2026
New York, New York

Respectfully submitted,
JACKSON LEWIS P.C.

By: */s/ Joseph Anci*
Joseph Anci
Corrine Shea
Attorneys for Defendants